

26VECV01563 26VECV01563

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-07-14

Motion: DEFENDANTS' DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT

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Case Number: 26VECV01563 Hearing Date: July 14, 2026 Dept: I

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

COUNTY

OF LOS ANGELES

TIMOTHY JEROME KORST, an individual,

Plaintiff,

vs.

CITY OF LOS

ANGELES, a municipal corporation; LOS ANGELES PUBLIC LIBRARY, a department of the City of Los Angeles; JOHN SZABO, City Librarian, sued in his individual and official capacities; JOYCE COOPER, Director of Branch Library Services, sued in her individual and official capacities; EMILY SATE, Supervisor, sued in her individual and official capacities; DARYL (last name unknown), Library Staff Member, sued in his individual and official capacities; SHIRLEY ASHE, West Valley Area Manager sued in her individual and official capacities; KATHERINE ROSS, former Regional Manager, sued in her individual and official capacities; DOE 1, DOE 2, and DOE 3, all sued in their individual and official capacities,

Defendants.

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CASE

NO: 26VECV01563

[TENTATIVE]

ORDER RE: DEFENDANTS' DEMURRER TO PLAINTIFF'S
FIRST AMENDED COMPLAINT

Dept.

I

DATE:

JULY 14, 2026

TIME: 8:30 A.M.

COMPLAINT

FILED: MARCH 16, 2026

TRIAL

DATE: NONE

I.

BACKGROUND

On March 16, 2026, Plaintiff Timothy Jerome Korst ("Plaintiff") filed a complaint against Defendants the City of Los Angeles (the "City"), Los Angeles Public Library ("LAPL"), John Szabo ("Szabo"), Joyce Cooper ("Cooper"), Emily Sate ("Sate"), Daryl (last name unknown)("Daryl"), Kevin Hasely ("Hasely"), Shirley Ashe ("Ashe"), Katherine Ross ("Ross")(collectively "Defendants"), and Does 1 to 3 alleging four causes of action: (1) violation of 42 U.S.C. § 1983 – first and fourteenth amendments; (2) violation of the Unruh Civil Rights Act; (3) violation of the Tom Bane Civil Rights Act; and (4) negligent supervision and retention.

On April 27, 2026, Plaintiff filed his first amended complaint ("FAC") adding Susan Broman ("Broman") and Does 1 to 20 as Defendants.

On June 16, 2026, Defendants filed the instant demurrer to Plaintiff's FAC.

On June 29, 2026, Plaintiff filed his opposition.

On July 7, 2026, Defendants filed their reply.

II.

LEGAL STANDARDS

Demurrer

A

demurrer is a pleading that may be used to test the legal sufficiency of the factual allegations in a complaint. (Cal. Code of Civ. Proc. § 430.10.) There are two types of demurrers: general demurrers and special demurrers. (See *McKenney v. Purepac Pharmaceutical Co.* (2008) 167 Cal.App.4th 72, 77.)

General

demurrers can be used to attack pleadings for failure to state facts sufficient to constitute a cause of action or for lack of subject matter jurisdiction. (CCP § 430.10(e); *McKenney*, supra, 167 Cal.App.4th at 77.) Such

demurrers can be used only to challenge defects that appear on the face of the pleading or from matters outside the pleading that are judicially noticeable; evidence or extrinsic matters are not considered. (CCP §§ 430.30 and 430.70; *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) To test the sufficiency of the cause of action, the Court admits “all material facts properly pleaded” and “matters which may be judicially noticed,” but does not consider contentions, deductions, or conclusions of fact or law. [Citation].” (*Blank, supra*, 39 Cal.3d at 318.) The Court gives these facts “a reasonable interpretation, reading it as a whole and its parts in their context.” (*Ibid.*) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (*Semole v. Sansoucie* (1972) 28 Cal. App. 3d 714, 721.) The face of the complaint includes exhibits attached to the complaint. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) “If facts appearing in the exhibits contradict those alleged, the facts in the exhibits take precedence.” (*Holland v. Morse Diesel Intern., Inc.* (2001) 86 Cal.App.4th 1443, 1447.)

CCP

§ 430.41 requires that “[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (CCP § 430.41(a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (CCP § 430.41(a)(2).) Thereafter, the demurring party shall file and serve a declaration detailing their meet and confer efforts. (CCP § 430.41(a)(3).)

When

a demurrer is sustained, the Court determines whether there is a reasonable possibility that the defect can be cured by amendment. (*Blank, supra*, 39 Cal.3d 311, 318.) When a plaintiff “has pleaded the general set of facts upon which his cause of action is based,” the court should give the plaintiff an opportunity to amend his complaint, since plaintiff should not “be deprived of his right to maintain his action on the ground that his pleadings were defective for lack of particulars.” (*Reed v. Norman* (1957) 152 Cal.App.2d 892, 900.) Generally, the court will allow leave to amend on at least the first try, unless there is absolutely no possibility of overcoming the issue. (See *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217,

1227 ["Denial of leave to amend constitutes an abuse of discretion unless the complaint shows on its face it is incapable of amendment. (Citation.) Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given."].)

III.

DISCUSSION

Meet and Confer

Defense

counsel declares that, on June 11, 2026, the parties met and conferred regarding the instant demurrer via video conference. (Goss Decl. ¶ 4.) The parties were unable to reach an agreement. (Ibid.) Accordingly, the Court finds that Defendants satisfy the meet and confer requirement of CCP § 430.41(a).

Request for Judicial Notice

As a preliminary matter, Defendants' June 16, 2026, request for judicial notice of the complaint in Timothy Jerome Korst v. California Department of Motor Vehicles, et al. (LASC Case No. 26VECV02109)(the "DMV Action") is granted pursuant to Cal. Evid. Code § 452(d). Additionally, Defendants' request for judicial notice of Los Angeles Municipal Code § 69.93 is granted pursuant to Evid. Code § 452(b).

Demurrer

Defendants demur

to Plaintiff's entire complaint on the grounds that Plaintiff fails to state facts sufficient to constitute each cause of action. (See Demurrer at p. 1.)

First Cause of

Action – Violation of 42 U.S.C. § 1983

First, to

successfully plead a cause of action for violation of 42 U.S.C. § 1983, a plaintiff must allege ultimate facts showing that (1) defendants violated their federal rights; and (2) they did so acting under color of state law. (San

Pedro Hotel Co., Inc. v. City of Los Angeles (9th Cir. 1998) 159 F.3d 470, 479; Johnson v. Hawe (9th Cir. 1994) 388 F.3d 676, 681.) “A plaintiff seeking recovery under section 1983 must plead more than constitutional ‘buzzwords’ to survive demurrer . . . The plaintiff must allege specific and nonconclusory facts showing the defendant’s acts deprived him of a right, privilege or immunity secured by the federal Constitution or federal laws.” (Breneric Associates v. City of Del Mar (1998) 69 Cal.App.4th 166, 180.) Notably, to allege liability under 42 U.S.C. § 1983 by a local government, a plaintiff must plead that a person or entity with decision-making authority expressly enacted or authorized an unconstitutional policy or exercised unconstitutional authority. (Monell v. Dept. of Social Services (1978) 436 U.S. 658, 691.)

Here, Plaintiff pleads that, on

March 18, 2024, Plaintiff visited the West Valley Regional Branch Library. (FAC at ¶ 29.) There, he “noticed a woman at an adjacent table working on an English as a Second Language (ESL) assignment . . .” (Id. at ¶ 30.) “Plaintiff approached the adjacent table . . . where the woman was working on her ESL assignment . . . Plaintiff offered his assistance entirely at no charge and with no commercial purpose.” (Id. at ¶ 31.) “The woman . . . a Chinese national temporarily residing in the United States – stood up and thanked Plaintiff for his offer. She expressed no discomfort, reluctance, or desire to be left alone.” (Id. at ¶ 32.) “Defendant MAXWELL approached Plaintiff and [the woman] from the opposite side of the table and directed his question solely to Plaintiff, asking whether Plaintiff knew [the woman]. Plaintiff truthfully answered that he did not.” (Id. at ¶ 33.) “Defendant MAXWELL then told Plaintiff he was ‘disturbing’ [the woman] and directed Plaintiff to ‘leave her alone.’ Defendant MAXWELL’s stated and sole basis was that Plaintiff did not already know [the woman]. Defendant MAXWELL made no allegation that Plaintiff was speaking loudly, violating any library rule, or engaging in any objectively disruptive conduct.” (Id. at ¶ 34.) “Defendant MAXWELL’s sole stated basis for intervention – that Plaintiff did not already know [the woman] – applied with equal force to [an] older male patron who had freely joined Plaintiff’s earlier conversation at the reference desk without any objection from Defendant MAXWELL. The only material difference between the two interactions was the sex of the patron Plaintiff was speaking with.” (FAC at ¶ 37.) “Plaintiff, unwilling to risk formal expulsion or revocation of his library privileges by continuing to contest . . . immediately left the premises.” (Id. at ¶ 38.) “The constructive compulsion to leave the library constituted a concrete, cognizable harm to Plaintiff’s First

Amendment rights . . . Defendant MAXWELL's directive . . . had an immediate chilling effect on Plaintiff's exercise of his right to free speech and association." (Id. at ¶ 39.)

Plaintiff fails to meet the Monell standard. (See Monell, supra, U.S. at 691.) Specifically, Plaintiff fails to plead that a person or entity with decision-making authority expressly enacted or authorized an unconstitutional policy or exercised unconstitutional authority. Plaintiff pleads that Maxwell was an employee at the West Valley Regional Branch Library but fails to plead any facts showing that Maxwell was a person with decision-making authority. (See FAC at ¶ 7.)

Even assuming, arguendo, Plaintiff did meet the Monell standard, Plaintiff fails to plead that Defendants violated a constitutional right. L.A.M.C. § 69.93 provides that, within the limits of any public library, "no person shall do any of the following acts . . . [p]ractice, carry on, conduct or solicit for any trade, occupation, business or profession or to circulate any petition of whatsoever kind or character without the permission of the Board of Library Commissioners." (L.A.M.C. § 69.93(g).) While Plaintiff deduces that he was instructed to leave the woman alone on the basis of sex (see FAC at ¶ 40), Plaintiff fails to provide any factual allegations supporting this argument. Importantly, when a plaintiff alleges a constitutional violation, a plaintiff may not allege improper contentions, deductions, or conclusions of fact. (See *People ex rel. Lungren v. Superior Court* (1996) 14 Cal.4th 294, 300-301.) Moreover, Plaintiff admits violation of L.A.M.C. § 69.93 as he approached the woman to offer ESL services "[d]rawing upon his MA in TESL, over twenty years' experience as a professional English language instructor, and his prior history of volunteer literacy instruction . . ." (See FAC at ¶ 31.) While Plaintiff pleads that the woman thought Maxwell's directive occurred because she was female (see FAC at ¶¶ 29-40 and 52-55), Plaintiff fails to plead any specific facts arising from Maxwell's conduct to support this inference. Additionally, Plaintiff's argument that L.A.M.C. § 69.93(g) requires a "commercial element" and that his offer was "gratuitous" also fails. (See Opposition at 18:23-19:2.) A plain reading of the statute does not require an exchange of money; instead, it prohibits the "[p]ractice . . . conduct, or solicit[ation] [of] any trade, occupation, business or profession . . ." (See L.A.M.C. § 69.93(g).) Once again, Plaintiff admits that he was

“drawing upon his MA in TESL, over twenty years’ experience as a professional English language instructor, and his prior history of volunteer literacy instruction” when offering his services to the woman. (See FAC at ¶ 31.)

Based on the foregoing, Defendants’ demurrer to Plaintiff’s first cause of action for 42 U.S.C. § 1983 is sustained with leave to amend.

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Timely Government
Claim

Next, Defendants demur to Plaintiff’s second, third, and fourth causes of action under state law because Plaintiff “filed an untimely government claim nearly two years after the incident about which he complains.” (Demurrer at 6:14-18.)

Cal. Gov. Code § 810 et seq. requires that a plaintiff timely present a claim for money or damages to the public entity, specifically, no later than six months after accrual of the cause of action. (See Gov. Code § 911.2.) Failure to present a timely claim bars a plaintiff from bringing suit against that entity. (Id.; see also Gov. Code § 954.4.)

Here, the underlying incident occurred on March 18, 2024. (See FAC at ¶ 24.) While Plaintiff pleads that the “institutional wrong could not have been complete on March 18 itself; it required the passage of complaints through the full chain of command and the deliberate choice at each level not to investigate, discipline, or remedy” (id. at ¶ 24), Plaintiff also pleads that this process was complete around May 2024. (Ibid.) Plaintiff further pleads that “[o]n March 2, 2026, Plaintiff presented a Government Claims Act claim to the Office of the Los Angeles City Clerk pursuant to Government Code § 910 et seq. . . .” (Id. at ¶ 26.) Accordingly, Plaintiff submitted his government claim well after the six-month accrual date.

In opposition, Plaintiff argues that

“[t]he six-month presentation period was independently tolled from approximately mid-April 2024 through the [Civil Rights Department “CRD”]’s Appeal Determination of August 26, 2024, leaving approximately five months of the original period remaining. In addition, Plaintiff was outside the United States from August 3, 2024 through December 15, 2025 pursuant to a United States Department of State English Language Fellowship . . . Plaintiff’s delay was the product of mistake, inadvertence, and excusable neglect within the meaning of Government Code § 946.6(c)(1) . . .” (Opposition at 15:14-25.) However, Plaintiff provides no legal authority or case law to support this argument. Additionally, “mistake, inadvertence, or excusable neglect” within the meaning of Gov. Code § 946.6 is that neglect which might have been the act of a reasonably prudent person under the circumstances. (N.G. v. County of San Diego (2020) 273 Cal.Rptr.3d 253, 262.) A claimant’s mere recital of mistake, inadvertence, surprise, or excusable neglect is not sufficient to warrant relief from the timely government claims requirement. (Ibid.) Here, Plaintiff’s failure to file a claim over nearly two years shows a lack of “reasonable diligence.” (Ibid.) Finally, Plaintiff is reminded that self-represented litigants are held to the same standard as attorneys. (Kobayashi v. Superior Court (2009) 175 Cal.App.4th 536, 543.)

Based on the foregoing, Plaintiff’s second, third, and fourth causes of action for violation of the Unruh Civil Rights Act, violation of the Tom Bane Civil Rights Act, and negligent supervision and retention, respectively, are barred by Gov. Code § 954.4.

Defendants’ demurrer to Plaintiffs’ second, third, and fourth causes of action is sustained without leave to amend.

Leave to Amend

Defendants’ demurrer to Plaintiff’s first cause of action for violation of 42 U.S.C. § 1983 is sustained with leave to amend since Plaintiff has not been given an opportunity to cure to date. (See Angie M., supra, 37 Cal.App.4th at 1227.) However, Defendants’ demurrer to Plaintiff’s second, third, and fourth causes of action is sustained without leave to amend as they are unequivocally barred by Gov. Code § 954.4 for failure to make a timely claim.

IV. CONCLUSION

Defendants'

demurrer to Plaintiff's first cause of action for violation of 42 U.S.C. § 1983
is sustained with leave to amend.

Defendants'

demurrer to Plaintiff's second,
third, and fourth causes of action for violation
of the Unruh Civil Rights Act, violation of the Tom Bane Civil Rights Act, and
negligent supervision and retention, respectively, is sustained without leave
to amend.

Plaintiff

is to file an amended complaint within 20 days of this order.

Moving

party to give notice.

Dated: July

____, 2026

Hon. Karen Moskowitz

Judge of the Superior

Court